

Calendar Line 3

Case Name: *Austin Business Finance, LLC v. J M Supermarkets, INC., et al.*

Case No: 26CV489690

Plaintiff and Judgment Creditor, Austin Business Finance, LLC (“Austin”), submitted an application for an order for sale of the interest in real property. Having received a judgment against J M Supermarkets, Inc. (“J M”) and Maria Ochoa Barajas (“Barajas”), Austin seeks a court order for the sale of Barajas’ undivided one-half interest in 7950 Arroyo Circle, Gilroy, California (“the Property”). Gilroy Ventures, LLC (“Gilroy”) has intervened seeking a judgment quieting title to the Property establishing: (1) that it owns a 100% fee simple interest; (2) that the Property is free and clear of any claim by Austin; and (3) that Austin has no interest, title lien, or right in the Property. (Steinberg Decl. ISO Ex Parte, Ex. 2.)

Gilroy’s and Austin’s briefs have presented a genuine issue as to who owns what interest in the Property. These issues require further litigation. Thus, Gilroy has shown cause as to why the property should not be sold. Accordingly, Austin’s Application for Order to sell Maria Ochoa Barajas’ interest in 8950 Arroyo Circle, Gilroy, California is DENIED.

The matter shall be set for a Case Management Conference on July 29, 2026 at 10:00 a.m. in Department 11.

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